

24STCP01897 24STCP01897

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-16

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F16%2F2026

Source SHA-256: 4cef87cfc736894ec5671dab46a42c1fd3dd74c52a206df14eecddaa959d1946

Case Number: 24STCP01897 Hearing Date: July 16, 2026 Dept: 26

TENTATIVE RULING:

Respondent Daybreak Game Company, LLC's Motion to Tax Costs is granted to correct the language of the proposed judgment filed on 09/19/2025 as follows.

No. 3 is corrected from "Pre-judgment interest is awarded at a rate of ten percent (10%) per annum, calculated from July 4, 2024, through the date of entry of this judgment" to "Pre-judgment interest is awarded at a rate of ten percent (10%) per annum, calculated from July 4, 2024 to the date of final payment of the total arbitration award."

No. 4 is corrected from "Costs of suit in the amount of \$1,955.40, as set forth in the filed Memorandum of Costs (MC-010 and MC-011), are included as part of this judgment" to "Costs of suit in the amount of \$695.40 are included as part of this judgment."

No. 5 is deleted in its entirety.

Analysis:

On June 12, 2024, Petitioner Kurtis Wilson ("Petitioner") filed a Petition to Confirm Arbitration Award (the "Petition") against Respondent Daybreak Game Company, LLC ("Respondent"). The Petition initially came for hearing on October 16, 2024, at which time the Court continued the matter to allow Petitioner to demonstrate service of the Petition and notice of the hearing on Respondent. (Minute Order, 10/16/24.)

On January 15, 2025, Petitioner filed the Petition to Correct and Confirm Arbitration Award, to which Respondent filed a response on February 10, 2025. At the hearing on March 18, 2025, the Court did not grant the Petition to Correct Arbitration Award and instead, gave Petitioner 60 days' leave to file a petition to confirm arbitration award. (Minute Order, 03/18/25.)

Petitioner filed a Petition to Confirm Arbitration Award on May 13, 2025. Following full briefing, the Court granted the Petition and ordered Petitioner to file a proposed judgment within 30 days. (Minute Order, 08/18/25.)

Petitioner submitted a proposed judgment on September 16, 2025 that attached a memorandum of costs. Respondent filed a "response" to the proposed judgment on September 24, 2025, objecting to certain costs and the calculation of interest. On February 11, 2026, in light of the response to the memorandum of costs being filed and served within the time period required for a motion to tax or strike costs, the Court found that Respondent had preserved its objections pursuant to Cal. Rules of Court, rule 3.1700(b)(1). (Minute Order, 02/11/26.) However, the Court ordered Respondent to file a noticed motion to tax costs within ten days, with the briefing schedule to be set per the Code of Civil Procedure. (Ibid.)

Respondent timely filed the instant Motion to Tax Costs on February 20, 2026. Respondent served Petitioner with the Motion by first-class mail and electronic mail on the same day. On May 13, 2026, the Court granted Petitioner's ex parte application to continue the hearing date to allow for an opposition. (Minute Order, 05/13/26.) The Court specifically ordered Respondent to file and serve supplemental papers demonstrating the date of final payment of the total arbitration award by June 18, 2026. (Ibid.) The Court further ordered that opposition and reply papers must be filed and served pursuant to the Code of Civil Procedure. (Ibid.)

Respondent filed and served a supplemental declaration on June 11, 2026. Petitioner filed an untimely opposition on July 13, 2026, only five court days prior to the hearing date. It was also untimely served on Respondent on July 10, 2026, just six days before the hearing. Opposition papers must be filed and served at least nine court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).)

Discussion

Petitioner's proposed judgment included the following statements to which Respondent objects: (1) "Pre-judgment interest is awarded at a rate of ten percent (10%) per annum, calculated from July 4, 2024, through the date of entry of this judgment;" (2) "Costs of suit in the amount of \$1,955.40, as set forth in the filed Memorandum of Costs (MC-010 and MC-011), are included as part of this judgment." (Proposed Judgment, filed 09/19/25, p. 1.); and (3) "The total judgment amount, including the principal, pre-judgment interest, and costs, shall bear post-judgment interest at the legal rate from the date of entry of this judgment until paid in full."

Objection to Pre-Judgment Interest Language in the Proposed Judgment

Regarding the award of pre-judgment interest in the proposed judgment, Respondent argues that it goes beyond the Court's award of pre-judgment interest to the date of final payment of the total arbitration award, and that Petitioner did not set forth the applicable interest calculation as ordered, thereby waiving the interest award.

Respondent is correct that the language of the proposed judgment does not reflect the Court's ruling. The interest award in connection with the Petition was for "interest (if any) in the amount of ten percent per annum from July 4, 2024 to the date of final payment of the total arbitration award." (Minute Order, 08/18/25, p. 1, emphasis added.) Although Respondent argues that by failing to include the interest calculation as ordered Petitioner has waived the right to pre-judgment interest, the Court declines to make such a finding. Respondent cites no authority for the waiver argument. (Response to Proposed Judgment, filed 09/24/25, p. 2:20-22; Motion to Tax Costs, pp. 3:27-4:1.)

Regarding evidence

of Respondent's payment of the judgment, including interest, its supplemental declaration demonstrates that it issued Petitioner a check on August 15, 2024 in the amount of \$22,250.00. (Supp. Decl., filed 06/11/26, ¶4.) In light of the arbitration award, which the Court reiterated in its ruling dated August 18, 2025, Petitioner was entitled to the principal amount of \$21,985.00 plus ten percent interest from July 4, 2024, to the date of the final payment. Ten percent interest on \$21,895.00 from July 4, 2024 to August 15, 2024 (42 days) amounted to \$6.02 per day, or total interest of \$22,237.98. This is attested to

in Respondent's supplemental declaration as the basis of its payment in the amount of \$22,250.00, which exceeded the amount owed to Petitioner by \$12.02. (Id. at ¶¶2-3.) Accordingly, the proposed judgment will be corrected to reflect the language of the arbitration award and the Court's ruling regarding the dates pre-judgment interest is owed.

Objection to Costs for Video Editing

Respondent first moves to tax the entire memorandum of costs on the grounds that Petitioner filed it prematurely, prior to the entry of any judgment in this action. As with its argument regarding waiver, Respondent cites no authority that this is grounds for relief. (Motion to Tax Costs, p. 1:2-4.) In fact, absent a showing of prejudice, "courts treat prematurely filed cost bills as being timely filed." (Haley v. Casa Del Rey Homeowners Assn. (2007) 153 Cal.App.4th 863, 880.)

Respondent also seeks to strike \$1,260.00 from the memorandum of costs for video editing. Respondent argues that video editing expenses are not an allowable cost under Code of Civil Procedure section 1033.5, and are not reasonable for a single-day evidentiary hearing before an arbitrator. To the extent that the video editing costs were incurred with respect to the arbitration proceeding, and not the instant action to confirm the arbitration award, they are not recoverable as costs in this proceeding. The Court's award of costs to Petitioner was made pursuant to Code of Civil Procedure section 1293.2, which pertains to costs for the judicial proceeding, not the arbitration. (Code Civ. Proc., § 1293.2.) Indeed, Petitioner's late opposition makes clear that the video editing costs were incurred during the arbitration proceeding, and not as part of the instant action. (Opp., p. 2:7-15.) Therefore, the request to strike Item 13 of the Memorandum of Costs is granted in the amount of \$1,260.00. The cost bill is reduced to \$695.40, and the proposed judgment will be corrected accordingly.

Objection to Post-Judgment Interest

Respondent contends that the language adding post-judgment interest to the judgment is improper because it goes beyond the Court's ruling confirming the arbitration award. The language awarding Petitioner post-judgment interest on the principal, pre-judgment interest, and costs is indeed beyond the scope of the Court's ruling, and the arbitration award. The

Court strikes that language in its entirety.

Conclusion

Respondent Daybreak Game Company,
LLC's Motion to Tax Costs is granted to correct the language of the proposed judgment filed on 09/19/2025 as follows.

No. 3 is corrected from "Pre-judgment interest is awarded at a rate of ten percent (10%) per annum, calculated from July 4, 2024, through the date of entry of this judgment" to "Pre-judgment interest is awarded at a rate of ten percent (10%) per annum, calculated from July 4, 2024 to the date of final payment of the total arbitration award."

No. 4 is corrected from "Costs of suit in the amount of \$1,955.40, as set forth in the filed Memorandum of Costs (MC-010 and MC-011), are included as part of this judgment" to "Costs of suit in the amount of \$695.40 are included as part of this judgment."

No. 5 is deleted in its entirety.

Moving party to give notice.